

Calendar Line 4

Case Name: *Maria Castro v. The Villages Golf and Country Club*

Case No.: 25CV469636

This is a putative class and representative action under the Private Attorneys General Act (“PAGA”) action. Plaintiff Maria Cristina Castro alleges defendant The Villages Golf and Country Club committed various wage and hour violations.

Before the Court is Defendant’s demurrer to Plaintiff’s first amended complaint (“FAC”), which is opposed. As discussed below, the Court OVERRULES the demurrer.

X. BACKGROUND

According to the allegations of the operative FAC, Plaintiff was employed as a non-exempt employee, with duties including preparing and cooking food, and customer service. (FAC, ¶ 3.) Defendant failed to, among other things: pay wages including overtime and minimum wages; provide meal and rest periods or compensation in lieu thereof; provide complete and accurate wage statements; and timely pay final wages.

Based on the foregoing, Plaintiff initiated this action on June 30, 2025, with the filing of the Complaint and on July 7, 2025, she filed the operative FAC, which asserts the following causes of action: (1) failure to pay overtime wages; (2) failure to pay minimum wages; (3) failure to provide meal periods; (4) failure to provide rest periods; (5) waiting time penalties; (6) wage statement violations; (7) failure to timely pay wages; (8) failure to indemnify; (9) violation of Labor Code § 227.3; (10) unfair competition; and (11) civil penalties under PAGA.

XI. REQUEST FOR JUDICIAL NOTICE

In support of its motion, Defendant requests judicial notice of the following items:

- (1) Plaintiff’s pre-lawsuit notification to the Labor & Workforce Development Agency (“LWDA”) and Defendant, filed on January 5, 2025: Exhibit A;
- (2) Defendant’s Notice of Cure to the LWDA, filed on February 7, 2025: Exhibit B
- (3) The LWDA’s response to Defendant’s Notice of Cure, sent on February 13, 2025: Exhibit C
- (4) Plaintiff’s second pre-lawsuit notification to the LWDA and Defendant, filed on May 2, 2025: Exhibit D;
- (5) Defendant’s response to Plaintiff’s second notification, filed June 3, 2025: Exhibit E; and
- (6) Plaintiff’s FAC.

As an initial matter, the Court declines to take judicial notice of the FAC because it is the operative pleading subject to the instant motion, thus, judicial notice is not necessary. (See *Paul v. Patton* (2015) 235 Cal.App.4th 1088, 1091, fn. 1 [Sixth Appellate District denies request for judicial notice as unnecessary as the court must consider allegations in the complaint and attached exhibits in ruling on demurrer].)

Next, Plaintiff opposes judicial notice of Exhibit C on the grounds that the letter does not constitute an official act of the agency. The Court agrees. Here, the letter is a communication to attorneys, however, it does not appear that it is meant to be an official act or part of public records.

Next, section 452, subdivision (h) does not apply to this document. (See *Gould v. Md. Sound Indus.* (1995) 31 Cal.App.4th 1137, 1145 [“Judicial notice under Evidence Code section 452, subdivision (h) is intended to cover facts which are not reasonably subject to dispute and are easily verified.”].)

In addition, a demurrer cannot be turned into an evidentiary hearing through a request for judicial notice. “For a court to take judicial notice of the meaning of a document submitted by a demurring party based on the document alone, without allowing the parties an opportunity to present extrinsic evidence of the meaning of the document, would be improper. A court ruling on a demurrer therefore cannot take judicial notice of the proper interpretation of a document submitted in support of the demurrer. In short, a court cannot by means of judicial notice convert a demurrer into an incomplete evidentiary hearing in which the demurring party can present documentary evidence and the opposing party is bound by what that evidence appears to show.” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 114-115, internal citations omitted; see also *New Livable California v. Assoc. of Bay Area Governments* (2020) 59 Cal.App.5th 709, 716 [citing *Fremont Indemnity Co.* among other decisions].)

Based on the foregoing, the Court will take judicial notice of the existence of Exhibit A-E and but it does not take notice of the truth of any disputed contents. (*Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81 (*Oh*).) Accordingly, Defendant’s request for judicial notice is GRANTED, in part and DENIED, in part.

XII. DEMURRER

Defendant demurs to the eleventh cause of action on the ground that Plaintiff failed to comply with the PAGA mandatory pre-filing requirements.

A. Legal Standard

The function of a demurrer is to test the legal sufficiency of a pleading. (*Trs. Of Capital Wholesale Elec. Etc. Fund v. Shearson Lehman Bros.* (1990) 221 Cal.App.3d 617, 621.) Consequently, “[a] demurrer reaches only to the contents of the pleading and such matters as may be considered under the doctrine of judicial notice.” (*South Shore Land Co. v. Petersen* (1964) 226 Cal.App.2d 725, 732, internal citations and quotations omitted; see also Code Civ. Proc., § 430.30, subd. (a).) “It is not the ordinary function of a demurrer to test the

truth of the plaintiff's allegations or the accuracy with which he describes the defendant's conduct. ... Thus, ... the facts alleged in the pleading are deemed to be true, however improbable they may be." (*Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 958, internal citations and quotations omitted.)

In ruling on a demurrer, the allegations of the complaint must be liberally construed, with a view to substantial justice between the parties. (*Glennen v. Allergan, Inc.* (2016) 247 Cal.App.4th 1, 6.) Nevertheless, while "[a] demurrer admits all facts properly pleaded, [it does] not [admit] contentions, deductions or conclusions of law or fact." (*George v. Automobile Club of Southern California* (2011) 201 Cal.App.4th 1112, 1120.)

B. Discussion

Defendant argues that Plaintiff's PAGA notices are not legally sufficient.

On January 6, 2025, Plaintiff's counsel filed an LWDA notice. (Defendant's Memorandum of Points and Authorities ("MPA"), p. 2:3.) On February 7, 2025, Defendant submitted a notice of cure to the LWDA. (MPA, p. 2:22.) On February 13, 2025, the LWDA provided a response to Defendant's Notice of Cure. (MPA, p. 2:23.) On May 2, 2025, Plaintiff's new counsel filed a new PAGA notice on her behalf. (MPA, p. 3:11-13.)

Here, the Court has only taken judicial notice of the existence of Plaintiff's PAGA notices but not the substance of the information contained therein. Therefore, to the extent Defendant seeks for the Court to evaluate whether the notices provided sufficient information, the Court declines to make a determination as that goes beyond the scope of demurrer.

In order to have standing to bring a PAGA action, a plaintiff must be an "aggrieved employee," which is defined as "any person who was employed by the alleged violator and against whom one or more of the alleged violations was committed." (Lab. Code, § 2699, subd. (c).) Before filing suit, the aggrieved employee "must notify the employer and the [LWDA] of the specific labor violations alleged, along with the facts and theories supporting the claim." (*Kim v. Reins California, Inc.* (2020) 9 Cal.5th 73, 81.) "If the agency does not investigate, does not issue a citation, or fails to respond to the notice within 65 days, the employee may sue." (*Ibid.*, citing Lab. Code, § 2699.3, subd. (a)(2).) Thus, where the state declines to investigate, the employee is "deputized" to "seeking any penalties the state can." (*ZB, N.A. v. Superior Court* (2019) 8 Cal.5th 175, 185.)

The FAC alleges that on January 6, 2025, Plaintiff provided written notice to the LWDA and to Defendants. (FAC, ¶ 13.) On April 2, 2025, she filed a notice of withdrawal regarding the January 6, 2025 notice. (*Ibid.*) On May 2, 2025, she provided the operative written notice. (*Ibid.*) The LWDA did not provide notice of its intention to investigate the alleged violations within sixty-five (65) calendar days of the May 2, 2025 date. (FAC, ¶ 19.)

Defendant largely relies on Exhibit C, which is the LWDA's response to Defendant's Notice of Cure, which is dated February 13, 2025. However, the FAC alleges that the January 6, 2025 notice was withdrawn and that the May 2, 2025 notice is the operative notice. (See FAC, ¶¶ 13, 19.) Thus, there is no response from the LWDA as to Plaintiff's operative notice. In accepting these allegations as true, as the Court must on demurrer, there are no contrary allegations or judicially noticeable facts before the Court to bring the sufficiency of Plaintiff's operative PAGA notice into question. (See *Align Technology, supra*, 179 Cal.App.4th at p. 958.) Defendant does not proffer any other arguments as to why the eleventh cause of action is deficient.

Based on the foregoing, Defendant's demurrer to the eleventh cause of action is OVERRULED.

XIII. CONCLUSION

Defendant's demurrer to the eleventh cause of action is OVERRULED.

The Court will prepare the order.

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Calendar Lines 5-6

Case Name: *Isabella Stojanov v. GDH Consulting, Inc.*

Case No.: 25CV477079

This is a class action arising from defendants GDH Consulting, Inc. (“GDH”); Micro Focus LLC (“Micro Focus”); Micro Focus (US), Inc. (“Micro Focus US”) (collectively, “Defendants”) alleged wage and hour violations.

Before the Court is Defendant GDH’s motion to compel arbitration, dismiss class claims, and stay civil proceedings; and Micro Focus and Micro Focus US’s (collectively, “Micro Focus”) joinder to GDH’s motion, which are both opposed. As discussed below, the Court DENIES GDH’s motion to compel arbitration, its request to dismiss Plaintiff’s class claims, and request to stay are MOOT. Additionally, the Court DENIES Micro Focus’s joinder.

XIV. BACKGROUND

According to the allegations of the operative complaint (“Complaint”), Plaintiff worked for Defendants from October 2020 through October 2022 as a Consultant and Marketing Project Administrator. (Complaint, ¶ 22.) Plaintiff performed various duties such assisting the Chief Executive Officer (“CEO”) with event planning, registration, budget management, vendor coordination, and supporting remote training and marketing efforts. (*Ibid.*)

Defendants failed to: pay wages, including minimum and overtime wages; provide meal and/or rest periods or compensation in lieu thereof; timely pay wages during employment; provide compliant wage statements; timely pay wages due upon separation; reimburse for necessary business expenses.

October 7, 2025, Plaintiff initiated this action with the filing of the Complaint, which asserts the following causes of action: (1) Violation of Labor Code §§ 1194, 1197, and 1197.1 (Minimum Wages); (2) Violation of Labor Code §§ 510 and 1198 (Unpaid Overtime); (3) Violation of Labor Code §§ 226.7 and 512, subdivision (a) (Meal Break Violations); (4) Violation of Labor Code § 226.7 (Rest Break Violations); (5) Violation of Labor Code §§ 204 and 210 (Wages Not Timely Paid During Employment); (6) Violation of Labor Code § 226, subdivision (a) (Wage Statement Violations); (7) Violation of Labor Code §§ 201, 202, and 203 (Untimely Final Wages); (8) Violation of Labor Code §§ 2800 and 2802 (Failure to Reimburse Necessary Business Expenses); (9) Violation of Labor Code §§ 925 and Business & Profession Code 16600, *et seq*; and (10) Violation of Business & Profession Code §§ 17200, *et seq*.

XV. EVIDENTIARY OBJECTIONS

In support of its reply, GDH submits evidentiary objections to Plaintiff’s declaration.

Objections 1-5 are OVERRULED.

XVI. GDH’S MOTION TO COMPEL ARBITRATION